

Open Letter to the Head of the Judiciary in Iran

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THE UNIVERSAL HOUSE OF JUSTICE

7 December 2010

To National Spiritual Assemblies

Dear Bahá'í Friends,

The Universal House of Justice has directed us to share with you the enclosed copies, in English and Persian, of an open letter, dated 7 December 2010, from the Bahá'í International Community to Ayatollah Mohammad Sadeq Larijani, Head of the Judiciary of the Islamic Republic of Iran. The communication concerns the grave miscarriage of justice that has been perpetrated against Mrs. Faríbá Kamálábádí [Fariba Kamalabadi], Mr. Jamálu'd-Dín Khánjání [Jamaloddin Khanjani], Mr. 'Afíf Na'ímí [Afif Naimi], Mr. Sa'íd Riḏá'í [Saeid Rezaie], Mr. Bihrúz Tavakkulí [Behrouz Tavakkoli], Mr. Vaḥíd Tízfaḥm [Vahid Tizfahm], and Mrs. Mahvash Thábit [Mahvash Sabet]—the seven Bahá'ís who formerly served as the members of the group known as the Yárán.

As you are no doubt aware, the final session of the trial of these innocent believers was held on 14 June 2010. The verdict, which was handed down on 7 August 2010, found the defendants guilty of three charges pertaining to the role they played, as the members of the Yárán, in seeing to the social and spiritual needs of Iran's Bahá'ís. They were also found guilty of three charges that alleged they had engaged in activities aimed at undermining the security of their country. In each case, the maximum penalty—ten years in prison—was imposed, notwithstanding that there was no foundation whatever for any of the accusations that had been levelled against them. With respect to a seventh charge—tarnishing the reputation of the Islamic Republic of Iran in the international arena and “spreading corruption on earth”—the court concluded that there was no evidence upon which to establish a finding of guilt.

On 25 August 2010, the lawyers representing the seven Bahá'ís submitted an appeal against the verdict, in which they detailed the flagrant procedural errors that had characterized the judicial proceedings and the wholly spurious nature of the accusations set out in the indictment. The appeal court ruled, on 12 September 2010, that there was no foundation to the charges related to undermining national security and accordingly overturned the sentence of a ten-year imprisonment for those alleged offences. It did, however, uphold the verdict on the charges related to the services of the seven Bahá'ís as the members of the Yárán.

The ruling of the appeal court simply confirms that the authorities, knowing full well that there was no basis for the charges that the accused had acted against the interests of Iran, then unscrupulously distorted and misrepresented the religious beliefs of the defendants and their service to the Bahá'í community in order to declare them guilty. To add to this manifest injustice, the judiciary has not yet formalized the appeal verdict, thus depriving the prisoners of the right to seek bail or to be granted leave from prison. In defiance of all reason, the prisoners are now in the third year of what is shamelessly termed a “temporary” detention.

Moreover, within mere days of the handing down of the original verdict, the prisoners were illegally transferred to Gohardasht Prison, which is notorious for its brutally harsh conditions. Now effectively placed in exile in contravention of Iran's statutes governing the transfer of prison inmates, they are forced to endure, amongst other indignities, appalling filth, pestilence, exposure to disease, and quarters so cramped

that it is difficult for them to lie down or even to perform their daily prayers. In the midst of such conditions, they remain uncomplaining; nonetheless, it is clear from recent reports that their health has deteriorated and they have no access to adequate medical treatment.

You are free to share the foregoing information and the enclosed communication with the Bahá'ís throughout your country. The enclosures may also be shared with others, including the media, as you deem appropriate. Should the House of Justice wish you to take additional action, such a request will be conveyed to you separately.

The House of Justice calls upon you to invite the believers in your community to hold devotional gatherings dedicated to the Bahá'ís in Iran, that they may be enfolded in the grace and protection of the Blessed Beauty and that their cherished longing to be free to labour shoulder to shoulder with their fellow citizens for the advancement of their beloved nation may be realized.

With loving Bahá'í greetings,

Department of the Secretariat

Open Letter to the Head of the Judiciary in Iran

7 December 2010

Ayatollah Mohammad Sadeq Larijani

Head of the Judiciary

Islamic Republic of Iran

Your Honor,

You are undoubtedly aware of the outcome of the trial and the subsequent appeal of Mrs. Fariba Kamalabadi, Mr. Jamaloddin Khanjani, Mr. Afif Naimi, Mr. Saeid Rezaie, Mrs. Mahvash Sabet, Mr. Behrouz Tavakkoli, and Mr. Vahid Tizfahm—the seven individuals who before their arrest were responsible, as the members of the group known as the Yaran, for administering the social and spiritual affairs of the Bahá'í community in Iran.

The lives of these seven Bahá'ís typify not only the lives of the Bahá'ís of Iran but also those of high-minded and noble-hearted Iranians of every creed and class. They are true citizens of that nation who have striven to dedicate themselves to its service. Their birthplaces span the entire country—from its capital city, to Sangsar, Yazd, Abadan, Ardestan, Mashhad, and Urumiyeh. Their ages range from thirty-seven to seventy-seven. Some of them have aging parents; all of them have children, the youngest one of whom was only nine when his father was arrested. Their professional occupations are also varied and include developmental psychologist, founder of the first automated brick factory in Iran, manager of a textile factory, agricultural engineer, school principal, social worker, and optician. Alongside their professional pursuits and family duties, they have rendered, on a purely voluntary basis, distinguished service to the people of that land, as, for example, in the advancement of women, in the promotion of literacy among the country's general population, and in the provision of the means of education for the thousands of Bahá'í youth who have been denied admission to Iranian universities since the inception of the Islamic Revolution.

Convinced that they had committed no wrong, and as there existed no proof whatsoever to support the accusations leveled against them, they had every hope that the judicial proceedings would exonerate them. Sadly, however, their hopes have thus far been frustrated, and the treatment they have received has unjustly violated every legal norm and every standard of fairness and equity. As history bears witness, whenever innocent citizens are brought before show trials, it is the judicial system itself and those who wield authority

within it that are on trial before the public gaze. The case of these seven individuals, which from the outset has been watched with growing interest by Iranians and non-Iranians alike, has been marked by such egregious violations of the law at every turn as to call into question the adherence to the principle of justice by a system that claims to uphold Islamic values.

The blatant injustice of a sentence to ten years' imprisonment handed down to such honest and law-abiding citizens impels us, as the representatives at the United Nations of one hundred and eighty-six national Bahá'í communities, to ask you to rectify this grave failure and accord the defendants the justice they have been denied. This request comes not only from their coreligionists throughout the world but from the United Nations, from governments and parliamentarians across the globe, from agencies of civil society, and from humanitarians and social thinkers, all of whom join their voices to ours in calling for the immediate release of these wronged individuals.

The officials of the Ministry of Intelligence, resorting to many reprehensible measures—illegal detention, denial of proper access to legal representation, interrogation methods that contravene standards of civilized behavior and aim to extract false confessions—all of which transgress even the current law of the land, exerted every effort to build a case against them. Despite this, the prosecutors were ultimately unable to present any credible evidence in support of their claims. Instead, what was exposed was the nefarious schemes of certain officials, as well as the inhumane conduct and sinister motives of the interrogators. Indeed, what is now starkly visible to all is the willingness of the authorities to trample the very standards of justice they are mandated to uphold on behalf of the people of Iran.

The trial itself was so devoid of the impartiality that must characterize judicial proceedings as to render the process a complete mockery. The defendants, certain of their own innocence and having nothing to hide, had asked for an open hearing. What then, one might ask, was the reason for the judge to have declared the proceedings to be “open and public” and yet refuse requests for attendance from observers, including representatives of diplomatic missions? Why was it made so difficult for the families of the defendants to attend the trial? Why were journalists excluded, while government cameramen were allowed an active presence? What was the reason for permitting the menacing presence of the agents of the Ministry of Intelligence throughout the trial? How was it that the verdict issued by the judges could refer to the religion of the defendants as a “misguided sect”? Is this not a clear sign that the court has violated the legal principle of neutrality? The obvious conclusion is that such actions have been motivated by blind prejudice and hatred against the Bahá'í community for its religious beliefs. How can a just society, or a just world, be built on a foundation of irrational oppression and the systematic denial of basic human rights to any minority? Everything your country overtly professes to seek on the world stage is contradicted by your treatment of your own people at home.

The 12 September 2010 ruling issued by the court of appeal overturned the verdict of the lower court in relation to the charges of espionage, collaboration with the State of Israel, and provision of classified documents to foreign nationals with the intention of undermining state security. The lower court itself had already found the defendants not guilty of the charge of “tarnishing the reputation of the Islamic Republic of Iran in the international arena” and of “spreading corruption on earth”. What remained of the case, therefore, were those charges that pertained to the activities undertaken by these seven individuals in administering the social and spiritual affairs of the Iranian Bahá'í community. Meanwhile, the judges, well aware that there were no grounds whatsoever for the charge of acting against the interests of Iran and its citizens, were under pressure from officials bent upon a finding of guilt. Consequently, the judiciary chose in essence to distort and present as illegal the religious beliefs of the defendants and their service to the Bahá'í community—a selfless service which their fellow Iranian Bahá'ís warmly acknowledged and appreciated. Thus, the seven were each sentenced to ten years in prison. This sentence has been strongly denounced not

only by the defendants themselves, their families, and the Bahá'í International Community but by advocates of justice in Iran and the world over.

Given that for the past twenty years the government of the Islamic Republic of Iran has been fully aware of the work of these individuals in managing the affairs of the Bahá'í community, to accuse them now of illegal activities is as baseless and unjust as it is inexplicable. Our open letter dated 4 March 2009 to the Prosecutor General of the Islamic Republic of Iran established in detail the spurious character of the charges leveled against the Yaran and we commend it to your attention. An unbiased reading of that letter will confirm that there are no grounds whatsoever on which the Islamic Republic could assert that the Bahá'ís of Iran, including these seven individuals, represent the least threat to public order or to the common weal in that land.

There is not a shred of evidence to support the accusation that these Bahá'ís were seeking to compromise national security, participating in subversive activities, or engaging in propaganda against the regime, charges which the defendants themselves have categorically denied. Such accusations are entirely inconsistent with the outstanding record of the Bahá'ís in Iran and around the world, who regard service to one's homeland and to humankind as an inescapable moral obligation. Nor do they accord in any way with the Bahá'í teachings, which assert that "in every country where any of this people reside, they must behave towards the government of that country with loyalty, honesty, and truthfulness." The approach adopted by the judiciary and the accusations leveled against these individuals constitute again a patent violation of the freedom of conscience and belief of Iranian citizens, and are a brazen contravention of Article 14 of the Iranian Constitution, which stipulates: "In accordance with the sacred verse, 'God doth not forbid you to deal with kindness and fairness towards those who have not made war upon you on account of your religion, or driven you forth from your homes' [60:8], the government of the Islamic Republic of Iran and all Muslims are duty-bound to treat non-Muslims kindly and in accordance with the principles of Islamic justice and equity, and to respect their human rights."

Now in their third year of what is shamelessly still termed a "temporary" detention, these seven prisoners have been subjected to every manner of indignity and violation of their fundamental rights. Their high resolve and their gracious character amidst the hardships they have been made to endure stand in sharp contrast to the brutality of their oppressors and attest their forbearance and purity of motive. This is a truth to which the noble people of Iran can now bear witness. The accounts we have received indicate that fellow inmates admire their conduct and demeanor, see them as beacons of hope and sources of consolation and comfort, seek strength from their wisdom, and regard them as the symbols of the free spirit and sincere heart that are characteristics of the people of Iran.

Your honor, we ask you, what purpose is served by seeking to extinguish such moral attributes and spiritual qualities? Are such acts of oppression faithful to the high principles extolled by the Prophet Muhammad (peace be upon Him)? In Gohardasht Prison, there are surely other innocent inmates. How can you allow any soul to be subjected to that prison's appalling state of filth, pestilence, disease, and the privation of facilities for basic personal hygiene? Such an odious and degrading environment is unworthy of even the most dangerous criminals. Does the government of Iran believe the principles of Islamic compassion and justice to be consistent with the imposition of such conditions on citizens? Why are the prisoners' pressing needs for medical care and treatment ignored? Who will be called to account if the health of any of these seven further deteriorates? Why are these innocent individuals not given adequate food, and why are they confined to prison cells of such insufficient space as to make it difficult for them to lie down or even to perform their daily prayers? Why has the judiciary callously deprived them of their right to compassionate leave? Are not all of these privations intended to break their spirits and those of the other Bahá'ís of Iran? Consider how the members of the Bahá'í community are continually forced to withstand the slander of their

beliefs and the distortion of their history in government-supported mass media; to endure provocations in the streets, from the pulpits, and with the support of certain officials, that incite hatred against them; to suffer illegal imprisonment; to see themselves denied access to higher education and to the means of earning a livelihood; to have their children suffer abuse and vilification in schools; and to witness their properties destroyed and their cemeteries desecrated with the support and approval of government authorities. Yet, what results have such efforts yielded? The response of the Bahá'ís of Iran to the persecution they have suffered in recent decades has made them, in the eyes of the Iranian population, embodiments of unyielding attachment to spiritual principle and of constructive resistance to oppression. What is more, it has brought about a heightened desire among that population to become acquainted with the verities of their Faith.

In January 2010, the Universal House of Justice, the international governing body of the Bahá'í Faith, noted in a message addressed to the Bahá'ís in Iran that, when those in authority conspire against innocent citizens, their actions ultimately vitiate their own credibility. In a similar vein, in our 4 March 2009 letter to the Prosecutor General of the Islamic Republic, we pointed out that the decisions of the Iranian judiciary with respect to the Bahá'ís will have implications well beyond the Bahá'í community in that land and will extend to the very freedom of conscience of all its citizens. Our hope was that, for the sake of the honor and reputation of Iran, the judiciary would seek to be fair in their judgment.

The Bahá'ís are not “others” in your country: they are an inseparable part of the Iranian nation. The injustices meted out to them are a reflection of the terrible oppression that has engulfed the nation. Your respect now for the rights of the Iranian Bahá'ís would signal a willingness to respect the rights of all the citizens of your country. Redressing the wrongs suffered by the Bahá'ís would bring hope to the hearts of all Iranians that you are ready to ensure justice for everyone. Our call, then, is in reality a call for respect of the rights of all the Iranian people.

With our hearts filled with love for Iran and our earnest hopes for the exaltation and glory of that land, we urge you, in your capacity as the Head of the Judiciary, to release the former members of the Yaran from prison and, along with them, all the Bahá'ís who are incarcerated across the country. These include Miss Haleh Rouhi, Miss Raha Sabet, and Mr. Sasan Taqva, the three young Bahá'ís who have now entered the fourth year of imprisonment in Shiraz for the crime of helping impoverished children to learn how to read and write. We likewise request that the Bahá'ís in that country be granted their full rights of citizenship, in order that they may be able to fulfill their heartfelt aspiration to contribute, alongside their fellow citizens, to the advancement of their nation. This, indeed, is no more than what you rightfully ask for Muslim minorities who reside in other lands. Bahá'ís merely seek the same treatment from you.

Respectfully,

Bahá'í International Community

[signed: The Universal House of Justice]